



STATE OF MISSISSIPPI

DEPARTMENT OF FINANCE AND ADMINISTRATION

FORMAT AND GUIDELINES FOR PROPOSALS

Laboratory Equipment and Supplies

RFx: 3130002350



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Manufacturers interested in entering into a nonexclusive, negotiated contract for the commodity listed above with the State of Mississippi, Department of Finance and Administration, Office of Purchasing, Travel and Fleet Management may submit a proposal electronically through the State of Mississippi e-procurement system which must include all information requested in this document. No costs or expenses associated with providing this information in the required format shall be charged to the State of Mississippi. All required documents must be attached as separate documents. It is the responsibility of the Manufacturer to verify that all the requirements for submitting the proposal have been fulfilled.

1. Registration with the State of Mississippi E-Procurement System

Mississippi's Accountability System for Government Information and Collaboration (MAGIC) is the state's e-procurement system. **Please note: It shall be the responsibility of each Manufacturer to ensure that your profile is current in our e-procurement system.** The website to register as a manufacturer with the State of Mississippi is: <https://www.dfa.ms.gov/vendors>. If you currently have a State Contract for the commodity listed above and you are unsure of your vendor number, please contact Easter Haimur at easter.haimur@dfa.ms.gov or 601-359-2030. *All Manufacturers must verify their registration and ensure that a current W9 is submitted to OFMMAGIC@dfa.ms.gov.*

State contract Manufacturers that do not have a MAGIC User Id and password, an email should be sent to mash@dfa.ms.gov. Enter "Vendor ID Request" as the email Subject, and include the following information in your email:

- MAGIC Vendor Number
- Vendor Name
- Contact Name
- Contact Email Address
- Contact Phone Number

For online learning instructions on submitting your proposal electronically, select "Training/Documentation" from the following link: <https://www.dfa.ms.gov/vendors>.

2. Specifications

The Manufacturer shall provide all products and services in strict accordance with the specifications outlined below. These specifications represent the minimum acceptable standards of quality, construction, performance, and serviceability. By submitting a proposal, the Manufacturer acknowledges and agrees that all items furnished under the resulting contract must meet or exceed these specifications. Failure to supply products that conform to the

required specifications may result in product rejection, contract suspension, or contract termination at the discretion of the State of Mississippi.

2.1. Item Requirements

These specifications establish the requirements for Laboratory Equipment and Supplies. A list of items is included with this document, as **Attachment A**. Manufacturers are **not required** to offer all items listed in this solicitation to receive a contract award. However, the Office strongly encourages Manufacturers to propose as many eligible products as possible, as broader product availability enhances statewide usability and may increase purchasing opportunities for the Manufacturer. The products on this list are the **only** products that will be available for sale.

2.2. Applicability and Compliance

Commodities procured under these specifications shall not deviate from those originally contracted for without written approval from the Office of Purchasing, Travel and Fleet Management. These specifications shall, until revised or rescinded, apply to all future purchases and contracts for the described commodities.

It is the intent of these specifications to obtain products that adequately meet user needs while promoting fair competition. Prospective bidders must review the full Format and Guidelines for Proposals, and notify the Office of Purchasing, Travel and Fleet Management of any issues that may unnecessarily restrict competition.

Any commodities or products currently covered under an existing State of Mississippi statewide contract are **expressly excluded** from any contract resulting from this Proposal Format and Guidelines. Offerors shall not propose items that are already available through another active State contract.

3. Proposal Requirements

3.1. Proposal Letter

Manufacturers should submit a signed letter with the proposal from an authorized representative indicating the Manufacturer's interest in entering a State Contract for the items being proposed. This letter must include:

- Manufacturer's name
- Location Address
- Mailing Address
- Telephone Number
- Email Address
- Website Address, (if applicable)
- Name of authorized representative submitting proposal.

By signing this letter, the Manufacturer is certifying that they are authorized to do business in the State of Mississippi, that neither the Manufacturer nor any potential subcontractors are debarred or suspended from submitting bids for contracts issued by any political subdivision or agency of the State of Mississippi, and that it is not an agent of a person or entity that is currently debarred from submitting bids for contracts issued by any political subdivision or agency of the State of Mississippi.

3.2. Dealers' List

The Office of Purchasing, Travel and Fleet Management requires that these contracts are established with the Manufacturer with all authorized distributors being listed. This dealers' list and associated requirements are included as **Attachment B**. Please provide a dealers list using the Excel spreadsheet. The file size cannot exceed 100 MB. It is the Manufacturer's responsibility to keep this list updated during the contract period. Dealers/Distributors must be registered in the State's e-procurement system.

3.2.1. Minority Vendor Status

Manufacturers should indicate if they or any of the distributors they list are considered Minority Vendors by placing "MV," for Minority Vendor, in the appropriate column on the spreadsheet. Minority Vendor means a business concern that (1) is at least 51% minority-owned by one or more individuals, or minority business enterprises that are both socially and economically disadvantaged, and (2) have their management and daily business controlled by one or more such individuals as ascribed under the Minority Business Enterprise Act and the Small Business Act 15 USCS, Section 637(a).

3.3. Price List

Manufacturers are required to provide a Price List Spreadsheet with pricing in an Excel format. A price list and associated requirements are included as **Attachment C**. This format is not required but is highly recommended. *To be eligible for consideration under the state contract, all items included on the Price List must reflect a minimum discount of 10% off the manufacturer's suggested retail price (MSRP).* The Price List shall clearly identify the MSRP, the State's discounted price, and the corresponding percentage discount for each item offered.

If the Manufacturer is listed on a GSA contract, a copy of the current price list must be submitted. Discounts shall be competitive when compared to prices and discounts received by the GSA, other state governments, and large volume commercial customers.

3.4. Internal Catalog Pricing Spreadsheet and Product Information

Manufacturers are required to complete the attached internal catalog spreadsheet(s) in their entirety. This internal catalog spreadsheet, included as **Attachment D**, must include the requirements specified herein and shall conform to only the best commercial standards and quality materials. *All items listed on the Internal Catalog Spreadsheet (ICS) are required to*

have a minimum discount of 10% off the manufacturer's suggested retail price (MSRP) to be considered for a State Contract.

3.5. Purchase Summary

If the Manufacturer currently has a contract with the State of Mississippi, a purchase summary is required. Please complete the purchase summary, included as **Attachment E**, for the current contract period starting September 1, 2025. This purchase summary must be attached with the proposal. The file size cannot exceed 100 MB. The purchase summary should only include sales to state agencies and governing authorities. **Please do not include sales to non-governmental entities.**

3.6. Purchase Summary Attestation

Each Manufacturer that submits a purchase summary must also complete and sign the Purchase Summary Attestation Form, provided in **Attachment F**, certifying that the reported sales information is true, accurate, and complete to the best of their knowledge. Failure to submit the required Purchase Summary and signed Attestation Form will result in disqualification from consideration or non-renewal of the contract.

3.7. Proposal Deadline

This contract is effective October 1st through September 30th; therefore, proposals for contracts must be received by 3pm CDT July 15th. ***Any proposal received after this deadline will not be considered.***

4. General Conditions

4.1. Term

The term of this agreement shall commence on the contract effective date and shall terminate on September 30, 2027, or one year from the contract effective date with no additional renewal periods.

4.2. Length of Price Guarantee

Pricing shall be firm for a twelve (12) month period. Price increases are ***not*** allowed during the term of the contract.

4.3. Transportation Terms

All freight and shipping costs are the responsibility of the Manufacturer and are not reimbursable. All items must be transported F.O.B Destination.

4.4. Payment Terms and Invoices

MS Code Section 31-7-305(3) allows a state entity to pay invoices within forty-five (45) days without penalty.

The State requires the Manufacturer to submit invoices electronically throughout the term of the agreement. Manufacturer invoices shall be submitted to the state agency using the processes and procedures identified by the State. Payments by state agencies shall be made and remittance information provided electronically as directed by the State. The Manufacturer understands and agrees that the State is exempt from the payment of taxes. All payments shall be in United States currency.

4.5. Addendum Period: Additions/Deletions

4.5.1. Addendum Periods

Additions or deletions will be permitted **only during designated addendum periods**. A **first addendum period** will be allowed during the **first five (5) business days of the contract**, beginning on the contract start date. This initial period allows Manufacturers to make limited additions or deletions necessary to align with initial contract implementation. A **second addendum period** will be held **February 1st through February 15th**, during which Manufacturers may submit additions or deletions for changes to become **effective April 1st**. **Price changes are not allowed during the addendum periods.**

4.5.2. Addendum Submission Requirements

When requesting additions or deletions, the Manufacturer shall submit a formal written request electronically (via email to the analyst listed in this proposal). The request must include:

- A cover letter identifying the requested additions or deletions.
- A list of all items proposed for addition or deletion.
- All required documentation as outlined in the Proposal Requirements for any new items.
- Product literature supporting the request.

When adding a distributor to the original distributor's list, the new distributor's information shall be submitted electronically (via email) using the attached Excel spreadsheet with read/write capabilities. The submission must include the distributor's full name, address, contact person, telephone number, fax number, and email address. The distributor must be registered in the **State of Mississippi's e-procurement system** prior to submitting a request for addition. See Section 1.

4.6. State of Mississippi Terms and Conditions

By submitting a proposal in response to this solicitation, the Manufacturer acknowledges, accepts, and agrees to comply with the **State of Mississippi's Standard Terms and Conditions**, as outlined in **Attachment G**. Submission of a proposal shall constitute an acknowledgment that the Manufacturer has read, understands, and agrees to be bound by all applicable provisions contained therein. Failure to comply with these terms and conditions may result in rejection of the proposal or termination of any resulting contract.

4.7. Sample contract

Manufacturers are strongly encouraged to carefully review the **Sample Contract** provided in **Attachment H** prior to submitting a proposal. The Sample Contract outlines the general terms, conditions, and requirements that will govern any contract awarded as a result of this solicitation.

Submission of a proposal shall constitute acknowledgment by the Manufacturer that they have reviewed the Sample Contract and are prepared to accept its provisions, subject to any negotiated modifications approved by the State of Mississippi. The final executed contract will be substantially similar in form and content to the Sample Contract included in Attachment H.

4.8. Award of Contract

New contracts will be awarded to all Manufacturers that submit proposals and are in compliance with this format and are proposing competitive prices. Any requested information not submitted may be cause for the contract proposal to be denied. **If a Manufacturer currently has a contract with the State of Mississippi and the submission is not received by the required submission date, the contract will expire, and you will be denied a new contract.**

4.9. Proposal Submission

Submission of a proposal constitutes the manufacturer's acknowledgment that it has read this document in its entirety and agrees to be bound by all instructions, requirements, specifications, terms, and conditions contained herein.

If you have any questions concerning this document, please contact the contract analyst listed below.

Easter Haimur, Contract Analyst
Office of Purchasing, Travel, and Fleet Management
701 Woolfolk Building, Suite A
501 North West Street
Jackson, MS 39201

Email-easter.haimur@dfa.ms.gov
Phone- 601-359-2030

If you need assistance navigating MAGIC or experience technical issues, please contact the MMRS Help Desk:

Phone: 601-359-1343

Email: mash@dfa.ms.gov